

Smt. Sabiya Khatoon v. Executive Engineer, Madhyanchal Vidhut Vitran Nigam Ltd., Bahraich

High Court of Judicature at Allahabad, Lucknow Bench · Division Bench · 4 October 2024 · 2024:AHC-LKO:69062-DB
· WRIT - C No. - 8755 of 2024 · **Disposed; apply under para 4.3; EE to pass order in three weeks**

HEADNOTE

Writ for a mandamus to provide a new electricity connection disposed of. The petitioner, whose application had not been considered, was left to apply under paragraph 4.3 of the Electricity Supply Code within two weeks. If she applies, the Executive Engineer, MVVNL, Bahraich, shall consider the application and pass an appropriate order within three weeks. Ownership of the premises, and entitlement to the connection, were not decided.

FACTUAL SUMMARY

Smt. Sabiya Khatoon approached the Lucknow Bench seeking a mandamus that the Executive Engineer, Madhyanchal Vidyut Vitran Nigam Limited, Bahraich, provide her an electricity connection. She had already applied for a new connection, and that application had not been considered. Counsel for the licensee stated that ownership of the premises in which the petitioner was residing was in dispute. The Division Bench heard both sides on 4 October 2024.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::4.3

new connection — application and consideration under paragraph 4.3

HOLDING

A writ seeking a mandamus to provide an electricity connection, brought after a new-connection application was not considered, is disposed of by leaving the consumer to apply under paragraph 4.3 of the Electricity Supply Code within two weeks. If that application is made, the Executive Engineer shall consider it and pass an appropriate order within a further three weeks. ¶ 1

PRINCIPLE TAGS

UP-2005::4.3 The Court did not direct that a connection be given. It disposed of the mandamus by leaving the petitioner to apply under paragraph 4.3 within two weeks and required the Executive Engineer, if she applies, only to consider the application and pass an appropriate order within three weeks. The disputed ownership of the premises was left to that consideration. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE PETITIONER IS ENTITLED TO A NEW ELECTRICITY CONNECTION, INCLUDING THE EFFECT OF THE DISPUTED OWNERSHIP OF THE PREMISES

Left to the Executive Engineer on an application under paragraph 4.3 ¶ 1